

Republic of the Philippines
SUPREME COURT
Manila
EN BANC

BASIC LEGAL AND JUDICIAL ETHICS (BLJE)
2025 CODE OF JUDICIAL CONDUCT AND
ACCOUNTABILITY
(CJCA)
A.M. NO. 25-04-04-SC

Promulgated: November 11, 2025 | **Effectivity:** December 21, 2025 (15 days after publication)
Reporting Justice: Hon. Maria Filomena D. Singh, Associate Justice
Strategic Context: Strategic Plan for Judicial Innovations (SPJI 2022–2027) — Outcome of Efficiency
Supersedes: The 2004 New Code of Judicial Conduct for the Philippine Judiciary (A.M. No. 03-05-01-SC) and all prior judicial conduct rules.

PART I: MASTER SYLLABUS & QUICK-REFERENCE MATRIX

Summary overview of the 7 Canons, General Provisions, and Revised Oath under A.M. No. 25-04-04-SC:

CANON	THEME & CORE PRINCIPLE	SECTIONS RANGE & KEY TOPICS
Preamble	Bedrock of Democracy & Judicial Integrity	Public trust, Proven competence, probity, independence, and accountability.
Canon I	Independence	Sections 1–9 - Sec. 1: Merit-based adjudication - Sec. 2: Duty to uphold independence - Sec. 3: Public awareness role - Sec. 4: Promotion of public confidence - Sec. 5: Independence from coequal branches & LGUs - Sec. 6: Freedom from judicial internal influence - Sec. 7: Freedom from party influence - Sec. 8: Prohibition on promoting private interests - Sec. 9: Security threats jeopardizing independence
Canon II	Fidelity	Sections 1–7 Sec. 1: Fealty to Constitution and law

		• Sec. 2: Fealty to role as judge • Sec. 3: Fealty to institution • Sec. 4: Duty to encourage settlement • Sec. 5: Administrative duties • Sec. 6: Integrity of court proceedings • Sec. 7: Professionalism in Judiciary
Canon III	Impartiality	Sections 1–13 • Sec. 1: Duty to be impartial • Sec. 2: Appearance of impartiality • Sec. 3: No preference or bias • Sec. 4: Statements promoting impartiality • Sec. 5: Ex parte communication ban • Sec. 6: Inappropriate interactions ban • Sec. 7: Conduct of proceedings • Sec. 8: Financial/business dealings • Sec. 9: Minimizing inhibition • Sec. 10: Improper comments ban • Sec. 11: Mandatory Inhibition (8 grounds) • Sec. 12: Voluntary Inhibition (3 criteria) • Sec. 13: Duty to state reasons & copy OCA/CJ
Canon IV	Propriety	Sections 1–29 • Sec. 1: Overall conduct & restrictions • Sec. 2: Highest ethical standards • Sec. 3: Avoiding publicity & vainglory • Sec. 4: Appropriate & gender-fair language • Sec. 5: Judicial temperament • Sec. 6: Decorum, attire & black judicial robe • Sec. 7: Relations with lawyers • Sec. 8–10: Family interests & political activity • Sec. 11: Ban on residence law office • Sec. 12–14: Freedoms of expression & association • Sec. 15–18: Academic, socio-civic & financial interests • Sec. 19: Prohibited acts & commercial activities • Sec. 20: Allowable emoluments • Sec. 21: Confidential information • Sec. 22–29: Digital & Social Media Governance (Responsible use, sub judice, pseudonyms, recreational limits, online abuse handling)
Canon V	Equality	Sections 1–5 • Sec. 1: Equal treatment by judge • Sec. 2: Avoidance of stereotyping • Sec. 3: Equal treatment by staff & users • Sec. 4: Permissible differential treatment for vulnerable persons

		• Sec. 5: Equal access, language & accommodations
Canon VI	Competence & Diligence	Sections 1–9 • Sec. 1: Professional competence standard • Sec. 2: Commitment & adjudicative priority • Sec. 3: Personal writing of decisions • Sec. 4: Speedy disposition of cases • Sec. 5: Continuing judicial education • Sec. 6: Ethical use of Technology and Artificial Intelligence (AI as research aid only, no substitution of judicial discretion) • Sec. 7: Responsible court management • Sec. 8: Orderly proceedings • Sec. 9: Referral of operational concerns
Canon VII	Accountability	Sections 1–34 • Sec. 1–2: Institution of actions & effect of death/retirement • Sec. 3–6: Procedure (Supreme Court, JIO, verified comments, dismissals) • Sec. 7: Prohibited pleadings • Sec. 8–10: Bar discipline, preventive suspension & withholding benefits • Sec. 11–16: Formal investigation, hearings & Supreme Court action • Sec. 17–20: Classification of Offenses (Serious, Less Serious, Light) • Sec. 21: Preliminary grievance meetings • Sec. 22–27: Penalties, modifying circumstances & fine payments • Sec. 28–29: Immediately executory nature & inflation adjustments • Sec. 30–34: Reinstatement & Petitions for Judicial Clemency
General Provisions	Transitory, Repeal & Effectivity	Sections 1–3 • Sec. 1: Transitory clause • Sec. 2: Repealing clause • Sec. 3: Effectivity (Dec 21, 2025)
Revised Oath	Solemn Undertaking	Official Revised Oath of Office for Justices and Judges

PART II: SUPREME COURT EN BANC RESOLUTION

RESOLUTION

SINGH, J.:

As the visible personification of law and justice, members of the Judiciary bear the heavy burden of public scrutiny and are therefore held to higher standards of conduct. Every act or omission of a justice or a judge, whether part of one's official duties or not, is viewed closely and critically by the public at large. These acts or omissions then form part of the overall perception not only of the justice or judge in question, but more importantly, the entire Judiciary and reflects, deservedly or not, its capacity to administer justice.

In order to enforce these stringent standards, and pursuant to its mandate under Section 6, Article VIII of the Constitution, the Court issued the Code of Judicial Conduct in 1989 and the New Code of Judicial Conduct for the Philippine Judiciary in 2004.

These issuances were "founded on a universal recognition that a competent, independent[,] and impartial [J]udiciary is essential if the courts are to fulfill their role in upholding constitutionalism and the rule of law, and that public confidence in the judicial system and in the moral authority and integrity of the [J]udiciary is of utmost importance in a modern democratic society."

Nevertheless, the law, technology, and socioeconomic structures have rapidly evolved since the promulgation of these issuances. These changes have demanded more from the members of the Judiciary in the exercise of their duties and the preservation of the integrity of their office. In order to respond to these changes and address these challenges, the Court undertook the revision of the New Code of Judicial Conduct for the Philippine Judiciary to align its provisions with contemporary standards.

To this end, the Sub-Committee for the Review of the New Code of Judicial Conduct for the Philippine Judiciary conducted extensive regional consultations nationwide with diverse stakeholders—justices, judges, court personnel, government and private lawyers, the academe, law students, and civil society—to capture the realities and modern exigencies of judicial administration.

The proposed Code is a major milestone in the realization of the Strategic Plan for Judicial Innovations 2022-2027 (SPJI), specifically under its outcome of Efficiency. The resulting document, now titled the 2025 Code of Judicial Conduct and Accountability, institutionalizes seven core Canons of judicial ethics, integrates comprehensive rules on digital communications and artificial intelligence, reinforces accountability mechanisms through the Judicial Integrity Office (JIO), and revitalizes the judicial oath of office.

ACCORDINGLY, the Court hereby RESOLVES to APPROVE the "2025 Code of Judicial Conduct and Accountability," the full text of which is set forth below.

PART III: FULL TEXT OF THE 2025 CODE OF JUDICIAL CONDUCT AND ACCOUNTABILITY

PREAMBLE

The rule of law is the bedrock of our democracy. In ensuring a democratic way of life for the people, a judge, as the principal dispenser of justice, must uphold the rule of law.

Constitutionally, a judge must be of proven competence, integrity, probity, and independence to qualify for the office. As the visible representation of the Judiciary, a judge's professional and personal conduct should inspire confidence in the institution. Public confidence is fostered not only by action but also by perception. A judge must, therefore, not only behave ethically but must likewise be perceived to act ethically.

The judicial office is a public trust. As such, a judge shall be accountable to the people. Judicial accountability, in turn, rests on the highest standard of integrity.

Integrity is the amalgamation of the values every judge must possess: independence, fidelity, impartiality, propriety, equality, competence, diligence, and accountability. These values are the measure of a judge's integrity and ethical responsibility.

A judge who lacks any of these values is unworthy of the position.

This Code shall apply to all incumbent justices and judges in the Philippine Judiciary, except as otherwise provided herein.

CANON I

Independence

Core Principle of Canon I (Independence)

Judicial independence is the performance of duties free from any undue or unwarranted influence. It is vital to the rule of law, the separation of powers, and the guarantee of a fair trial. It is likewise essential to the promotion and preservation of confidence in the judicial system. Hence, a judge has the solemn duty to uphold and exemplify judicial independence in both its individual and institutional aspects.

SECTION 1. Merit-based adjudication. — In the exercise of judicial duties, a judge must act independently, relying on one's own appreciation of the facts and evidence and interpretation of the law. A judge should reject influences from political, family, social, professional, or other relationships, as well as inducements, pressure, or threats from any source, including but not limited to the threat or fear of being administratively, civilly, or criminally charged.

SECTION 2. Duty to uphold judicial independence. — A judge shall protect judicial independence by observing measures to safeguard the performance of judicial responsibilities.

SECTION 3. Role in raising public awareness of independence. — In the performance of judicial functions and when appropriate, a judge may participate in activities that raise public awareness, understanding, and appreciation of the importance of judicial independence and its impact on the fair and effective administration of justice.

SECTION 4. Role in the promotion of public confidence. — Judicial independence is essential to promote public confidence. To this end, a judge shall exemplify and uphold the highest standards of judicial conduct and strictly observe the guarantees of a fair trial.

SECTION 5. Independence from coequal branches. — A judge shall avoid inappropriate connections with the executive and legislative branches of government, whether on the national or local levels, and must also appear to be free from them, to allay any suspicion that such connection will affect judicial independence. Nevertheless, assistance from other government branches may be accepted, as allowed by law.

Until such time that the funding is allocated under the Judiciary appropriation of the annual budget, a judge may receive financial assistance from other government branches, including allowances, as allowed by the Local Government Code. In all cases, such financial assistance shall be restricted to work-related activities.

When the assistance is in the form of equipment, furniture, supplies, or like items, a judge shall ensure that it is received solely in the name of the Judiciary and for its sole benefit. For assistance in the form of personnel complement, a judge shall ensure that confidentiality of information or records is strictly maintained and safeguarded.

A judge shall observe the pertinent laws and rules in the receipt and documentation of the assistance.

SECTION 6. Freedom from influence from other members of the Judiciary. — The performance of judicial functions is a judge's sole responsibility. A judge is mandated to render decisions and orders consistent with the facts and the law on which these are based.

A judge shall reject and report any exertion of influence, pressure, or inducement from any former or incumbent member, official, or employee of the Judiciary to the appropriate authorities.

SECTION 7. Freedom from influence of parties. — A judge shall exhibit independence from the parties involved in the disputes that a judge is tasked to adjudicate.

SECTION 8. Prohibition against promotion or influence of private interests. — A judge shall not use the judicial office to promote private interests or create, or permit others to create, an impression that certain individuals have influence over the judge.

SECTION 9. Security threats jeopardizing independence. — A judge shall report to the proper authorities, without delay, any threat or attempt to compromise one's security or the security of their family members.

CANON II

Fidelity

Core Principle of Canon II (Fidelity)

Fidelity is a judge's fealty to their role in the administration of justice and to the institution itself, to ensure the efficient and effective operation of the court.

SECTION 1. Fealty to the Constitution and the law. — A judge shall uphold the Constitution and the laws of the land. In case of doubt, a judge shall be guided by the letter and spirit of the law, and in the absence or insufficiency of an applicable law, a judge shall be guided by what is right, just, and fair.

Fidelity to the Constitution and the law applies not only to the decision itself but also to the process by which a decision is reached.

SECTION 2. Fealty to the role as a judge. — A judge shall be faithful to their role as an administrator of justice.

A judge shall not engage in partisan political activities or public policy debates.

SECTION 3. Fealty to the institution. — A judge shall faithfully observe and implement all administrative policies, circulars, and directives of the Supreme Court.

SECTION 4. Duty to encourage settlement. — When the laws or rules permit, a judge shall encourage the parties to seek a compromise or settle the dispute through alternative dispute resolution mechanisms.

SECTION 5. Administrative duties. — A judge shall ensure the efficient and effective administration of their court, including the supervision of court personnel and management of court records and resources.

SECTION 6. Duty to ensure the integrity of court proceedings. — A judge shall ensure the integrity of court proceedings and safeguard court records against unauthorized access, alteration, loss, or destruction.

SECTION 7. Duty to uphold professionalism in the Judiciary. — A judge shall maintain professional relations with fellow judges, court personnel, lawyers, and the public, treating everyone with dignity, courtesy, and respect.

CANON III

Impartiality

Core Principle of Canon III (Impartiality)

Impartiality is essential to the proper discharge of the judicial office. It applies not only to the decision itself but also to the process by which the decision is made. A judge shall ensure that their conduct, both in and out of court, maintains and enhances the confidence of the public, the legal profession, and litigants in the impartiality of the judge and of the Judiciary.

SECTION 1. Duty to be impartial. — A judge shall perform all duties without favor, bias, or prejudice.

SECTION 2. Appearance of impartiality. — In the discharge of duties, a judge shall avoid situations that may reasonably give rise to the appearance of partiality or bias.

SECTION 3. Preference for or bias against lawyers and litigants. — A judge shall not manifest, by words or conduct, bias or prejudice, or give preferential treatment to any lawyer or litigant. Neither shall a judge exhibit prejudice or bias against any lawyer or litigant.

SECTION 4. Conduct and statement of a judge to promote impartiality. — A judge shall ensure that one's conduct and statements, both in and out of court, inspire and maintain public confidence in the impartiality of the judge.

SECTION 5. Ex parte communication. — A judge shall not engage in ex parte communication in whatever form, platform, or medium.

Ex parte communication, as used in this Canon, is any communication outside the official court proceeding between a judge and a litigant, lawyer, or any interested party involving any issue pending before the judge without informing, and in the absence of, the other party.

SECTION 6. Prohibition against inappropriate interaction or association with lawyers and litigants. — A judge shall refrain from interacting or associating with litigants or their lawyers, in whatever form, platform,

or medium, or on any occasion, when such interaction or association will tend to undermine or compromise the judge's impartiality, or give the appearance of undermining or compromising the judge's impartiality.

SECTION 7. Conduct of proceedings. — A judge shall ensure that court proceedings are conducted in an orderly and fair manner, without unnecessary disruptions.

When warranted, a judge may take an active part in examining a witness to determine their credibility, as well as the truth of their testimony, without manifesting bias or prejudice.

SECTION 8. Duty to refrain from or avoid financial and business dealings. — A judge shall refrain from financial and business dealings that tend to reflect adversely on the court's impartiality, interfere with the proper performance of judicial functions, or increase involvement with lawyers or persons likely to come before the court.

SECTION 9. Judge to minimize potential for inhibition. — A judge shall, so far as reasonable, conduct themselves as to minimize the occasions in which it will be necessary for them to inhibit from hearing or deciding cases.

SECTION 10. Prohibition against improper comments. — During the pendency of a case or when there is a likelihood that a case could come before them, a judge shall not knowingly make any comment in and out of court that could reasonably be expected or perceived to affect its outcome, impair the fairness of the process, or diminish the public's confidence in the court's impartiality.

SECTION 11. Mandatory inhibition. — A judge shall inhibit from participating in any proceeding under any of the following circumstances:

- (a) The judge has gained personal knowledge of disputed evidentiary facts concerning the proceeding;
- (b) The judge previously served as counsel or was a material witness in the matter in controversy;
- (c) The counsel or witness in a pending matter before the judge (i) is the judge's former associate (including former partners or coworkers in an office, whether public or private), and (ii) the said associate had already been engaged in the action during their association;
- (d) The judge, or a member of the judge's family, has a financial interest in the outcome of the matter in controversy;
- (e) The judge served as executor, administrator, guardian, or trustee in the case or matter in controversy, or with respect to the subject matter thereof;
- (f) The judge's ruling in a lower court or that of the judge's relative within the fourth civil degree of consanguinity or affinity is the subject of the present review;
- (g) The judge is related by consanguinity or affinity to a party litigant within the sixth civil degree or to counsel within the fourth civil degree; or
- (h) The judge's spouse or child has a financial interest as heir, legatee, creditor, fiduciary, or the like in the subject matter in controversy, or in a juridical party to the proceeding, or has any other interest that could be substantially affected by the outcome of the proceedings.

SECTION 12. Voluntary inhibition. — A judge may, in the exercise of sound discretion, inhibit from a proceeding for just or valid reasons other than the grounds for mandatory inhibition.

In case of voluntary inhibition, the judge shall take into consideration the following:

As soon as the judge becomes aware of circumstances that may affect the judge's impartiality, the judge shall disclose the same to the parties. After the ground has been disclosed and the parties agree, the judge may continue with the proceedings. The agreement shall be embodied in an order.

- (a) whether a judge is unable to decide the matter impartially or if it will appear to a reasonable observer that the judge is unable to decide the matter impartially;
- (b) whether the matter giving rise to the possibility of inhibition is serious as to affect the fairness and undermine the integrity of the proceedings; and
- (c) whether there is no other court that can be assigned to handle the case or because of urgent circumstances, failure to act could lead to a miscarriage of justice.

SECTION 13. Duty to state reason for inhibition. — In every order of inhibition, a judge shall state the reason therefor and furnish copies to the parties; and, for the trial courts, the executive judge, the Office of the Court Administrator, and the Office of the Chief Justice; and for the tertiary-level courts, the presiding justice and the Office of the Chief Justice.

CANON IV

Propriety

Core Principle of Canon IV (Propriety)

Propriety and the appearance of propriety encompass a judge's conduct, behavior, and attitude, in whatever form, platform, or medium, in accord with the highest standard of behavior expected of judges in their public and private capacities to inspire and maintain public confidence in the judicial system. A judge shall live modestly and avoid any ostentatious display of wealth.

SECTION 1. Overall conduct and personal restrictions. — As a subject of constant public scrutiny because of their esteemed position, a judge must freely and willingly embrace personal restrictions that may be commonly viewed as burdensome by an ordinary citizen. In particular, a judge shall conduct oneself in a manner consistent with the dignity of the judicial office.

SECTION 2. Highest ethical standards. — A judge's conduct shall be beyond reproach and conform to the highest ethical standards.

A judge must be aware of prevailing social norms. A judge shall refrain from committing any act, in or out of court, that may cause dishonor or ridicule to, or reasonably tend to tarnish the image and dignity of, the judicial office.

SECTION 3. Avoiding publicity. — A judge shall not seek publicity for self-promotion and vainglory.

Self-promotion includes actions taken to elevate one's public image for personal gain or advantage. A judge shall avoid making claims of expertise and ensure that any statement of qualifications is objective and factual.

Vainglory is inordinate pride in one's achievements.

SECTION 4. Use of appropriate language. — A judge shall use only dignified, gender-fair and child- and culturally-sensitive language at all times.

SECTION 5. Judicial temperament. — A judge shall, at all times, exhibit the judicial temperament required of the position as reflected in the ability to effectively and respectfully communicate with counsel, witnesses, litigants, court staff, and other court users, as well as the willingness to listen to and consider all sides of a debatable position. A judge shall strive to be patient, open-minded, courteous, tactful, courageous, resolute, compassionate, and humble.

SECTION 6. Proper decorum and appearance. — A judge shall observe proper decorum in keeping with the dignity of the judicial office.

A judge's attire shall at all times be consistent with the dignity of the judicial office, with due respect to the person's sexual orientation, gender identity, and expression.

A judge shall wear their black judicial robe during official court proceedings as a symbol of judicial authority, unless otherwise provided.

SECTION 7. Personal relations of a judge with lawyers. — A judge shall, in their personal relations with individual members of the legal profession, especially those who regularly appear in their court, avoid situations which might reasonably give rise to the suspicion or appearance of closeness or favoritism, to maintain the integrity and impartiality of the judicial office.

A judge shall not meet in private with any litigant, lawyer, or person to discuss an interest in any case or action, whether potential, current, or terminated, subject to the rule on ex parte communications.

SECTION 8. Balancing the requirements of judicial office and family interests. — As the acceptance of judicial office has implications on a judge's family, a judge shall exercise sound discretion in balancing the requirements of judicial office and the legitimate demands of their private lives and family relations.

SECTION 9. Family interests affecting judicial duties. — A judge shall instruct their family members not to invoke or use the judge's position, nor convey any impression of influence over the judge in order to secure benefits, obtain favors, or, in any way advance the family member's personal, professional, or financial concerns or interests.

A judge is expected to know the professional or financial concerns of their family members insofar as they may be relevant to the discharge of their judicial functions and the necessity of inhibition. When the circumstances indicate that a judge was in the position to know or ought to have known such concerns, the lack of knowledge may not be raised as an excuse for the failure of a judge to inhibit in the proper case.

A judge's family includes a judge's spouse or partner, their children, the spouses or partners of their children, their parents, and the parents of their spouse or partner.

SECTION 10. Family engaged in political activities. — When any member of a judge's family within the fourth civil degree of consanguinity or affinity is engaged in politics or politically-related activities, a judge shall recognize that such activities of family members may adversely affect the public perception of their judicial office, and, thus, a judge shall refrain from activities that might compromise one's judicial independence and fairness.

Should a case arise where a judge's independence or fairness is placed into question due to a family member's elective position or political activity or affiliation, a judge shall consider whether inhibition is appropriate.

SECTION 11. Use of residence by lawyers in the family. — A judge shall not allow their residence to serve as the law office or the law office address of other lawyers in the family, or be used to receive and confer with their clients and potential litigants. In all cases involving a common residence of a judge and other lawyers in the family, a judge shall avoid inappropriate engagement in or involvement with the professional work of the lawyers, including discussing the merits of a case, providing legal opinions, or intervening with strategic approaches.

This provision shall also apply to members of the family who, not being judges or lawyers, are engaged in legal or law-related professions.

SECTION 12. Exercise of freedoms compatible with office. — A judge shall exercise their freedom of expression, religion or belief, association, and assembly in a manner compatible with the dignity of their judicial office and the impartiality and independence of the Judiciary.

A judge shall consider the possible consequences and perceptions likely to arise from the exercise of these freedoms and seek to minimize the situations in which they may eventually be called upon to inhibit themselves.

SECTION 13. Freedom of expression. — A judge may express personal views and beliefs on matters of government and politics, religion and culture, and social and public interest, ensuring that these do not interfere with the independent and fair discharge of judicial functions, nor in any way compromise the appearance of independence and impartiality of the judge and the Judiciary.

In all cases, a judge shall:

- (a) abide by the statutory prohibition against partisan politics, including openly endorsing political candidates or contributing to political parties;
- (b) not publicly engage in any form of debate that would identify one as biased or prejudiced for or against any potentially litigable issue;
- (c) not allow religious and other beliefs to dictate the course of their adjudication, ensuring that every decision is strictly in accord with law and the evidence on record;
- (d) not impose on the court and its users any form of religious practice;
- (e) not make statements or comments in any forum, platform, or medium, including but not limited to public appearances, academic lectures, online platforms, or social media, that might affect the outcome of a proceeding before or could come before them, or that might diminish public confidence in the impartiality of the Judiciary;
- (f) not comment nor provide any opinion or forecast sub judice on any matter pending before other courts, tribunals, or agencies; and

(g) not engage in other analogous actions.

SECTION 14. Freedom of association. — Subject to the limitations imposing a level of mindfulness, sensitivity, and restraint in their actions, a judge is free to join:

- (a) associations or assemblies of judges, or participate in other organizations representing the interests of judges;
- (b) organizations of lawyers; and
- (c) civic, charitable, religious, cultural, educational, or other organizations whose objectives and activities are not incompatible with the discharge of judicial functions, nor give rise to suspicion of partiality.

SECTION 15. Work priority and personal interests. — In general, a judge shall prioritize judicial work over personal, academic, socio-civic, and financial interests, ensuring that other pursuits do not compromise the timeliness, quality, or integrity of judicial duties.

SECTION 16. Academic interests. — A judge may pursue further academic studies, teaching, writing, lecturing, or research on legal and non-legal subjects, provided that these activities do not interfere with the performance of official duties and are not incompatible with the judicial office.

SECTION 17. Socio-civic interests. — A judge may participate in socio-civic, charitable, cultural, and community activities, provided they do not solicit funds or allow their judicial office to be used for fundraising, nor associate with groups advocating causes that may compromise judicial neutrality.

SECTION 18. Financial interests. — A judge may maintain financial investments, manage family businesses, and engage in remunerative activities permitted by law, provided they do not exploit the judicial office, engage in commercial transactions with litigants appearing before them, or generate conflicts of interest.

SECTION 19. Prohibited acts and activities. — A judge shall not:

- (a) Engage in the private practice of law, directly or indirectly;
- (b) Serve as executor, administrator, trustee, guardian, or other fiduciary, except for the estate, trust, or person of a member of the judge's immediate family, and only if such service does not interfere with the proper performance of judicial duties;
- (c) Accept appointment to any government committee, commission, or other position that is concerned with issues other than the improvement of the law, the legal system, or the administration of justice;
- (d) Engage in commercial enterprises or business activities that exploit the judicial office;
- (e) Solicit funds or allow their judicial title to be used in any fundraising campaign;
- (f) Accept gifts, bequests, favors, or loans from anyone whose interests have come or are likely to come before the court; and
- (g) Engage in any other analogous prohibited act or commercial undertaking.

SECTION 20. Allowable emoluments; recognitions. — Subject to law and Supreme Court guidelines, a judge may receive reasonable compensation, honoraria, per diems, and expense reimbursements for permitted extra-judicial activities, provided that such payments do not exceed what a non-judge would receive for the same activity and are properly declared in accordance with transparency and asset disclosure laws.

SECTION 21. Confidential information. — A judge shall not use or disclose confidential information acquired in their judicial capacity for any purpose unrelated to the judge's judicial duties.

Rules on the Use of Social Media

SECTION 22. Responsible use of social media by a judge. — A judge shall use social media or other digital or online platforms with caution and circumspection, fully aware of its universality and public accessibility, always conscious that inappropriate social media behavior may diminish public confidence in the judge and in the judicial system.

In the exercise of one's freedom of expression, a judge who uses social media platforms is reminded that in so doing, they do not shed their status as judges. As the visible personification of the law and justice, they are subject to the highest standard of conduct and, thus, must be cautious and circumspect in their engagement on these platforms.

SECTION 23. Knowledge of risks, incidents, and characteristics of the use of social media. — A judge shall have the duty to understand the benefits, privacy and security concerns, risks, and ethical implications of their use of social media.

A judge shall review their privacy settings and be aware of and take into consideration the practical aspects of online forms of expression and association.

SECTION 24. Limitations on use of social media. — A judge shall not engage or use any form of expression which tends to violate, or has the effect of, violating the sub judice principle, provoke or inflame divisive and contentious issues of public concern, or project an image not compatible with the dignity of their position.

A judge shall not use in their online activities any language, image, video, or the like that are false, malicious, vulgar, scandalous, intemperate, abusive, or discriminatory. Neither shall a judge knowingly or maliciously post, share, upload or otherwise disseminate false or unverified statements, claims, or commit any other act of disinformation.

At all times, a judge shall exercise prudence when engaging with others online, keeping in mind that such engagements even if made in small or private circles may be circulated to other groups or in other platforms.

SECTION 25. Recreational use of social media. — A judge shall ensure that their recreational use of social media shall not adversely affect their performance of judicial duties with competence and diligence.

SECTION 26. Refraining from using social media to advance financial interests. — A judge shall refrain from using their social media accounts to directly or indirectly advance their own or any third party's financial interests.

SECTION 27. Use of real names and pseudonyms in social media. — A judge may use their real names and disclose their rank or position on social media provided that it does not violate the Canon on Propriety. A judge may use a pseudonym if allowed by the social media site, unless doing so will circumvent the law or the

provisions of the Code. In using a pseudonym, a judge shall be mindful that their real identity may nevertheless be known to or discovered by other users.

SECTION 28. Use of social media in relation to pending cases. — A judge shall refrain from employing social media to gather information about a particular party, issue, or incident in a pending case that are not part of the evidence presented before the court and may potentially influence their decision in a case.

SECTION 29. Handling abuses online. — A judge shall refrain from responding to abuses or harassment made online directed against the judge. A judge may instead resort to the remedies provided for under the applicable laws or rules for their protection and security.

CANON V

Equality

Core Principle of Canon V (Equality)

Equality before the courts means fair and equal treatment in both adjudicative and administrative matters regardless of nationality or ethnicity, disability, gender, sexual orientation or gender identity and expression, age, religion, educational attainment, marital, social, or financial status, and other similar factors.

SECTION 1. Equal treatment by a judge. — A judge shall accord colleagues, court personnel, and court users the same level of respect, attention, and sensitivity.

SECTION 2. Avoidance of stereotyping. — A judge shall refrain from stereotyping anyone based on their circumstances. Neither shall a judge exhibit conduct or use language that perpetuates discriminatory stereotypes.

SECTION 3. Equal treatment by court personnel and court users. — A judge shall direct the court personnel and any individual under their supervision or control to treat everyone equally. Appropriate action shall be taken by the judge against anyone who discriminates against or extends undue favor toward any individual.

SECTION 4. Permissible differential treatment. — In ensuring equal access to court proceedings and remedies, a judge shall make reasonable adjustments to accommodate vulnerable persons, to the extent allowed by existing laws and rules.

A vulnerable person is one who is at a higher risk of harm than others, including, but not limited to, children, women, the elderly, the homeless, persons with disability, persons deprived of liberty, human rights victims, victims of domestic violence, victims of armed conflict, those who are socioeconomically disadvantaged, or those who belong to racial or ethnic minorities.

SECTION 5. Equal access to court proceedings and remedies. — A judge shall ensure equal access to court proceedings and remedies for all individuals, which includes reasonable adjustments to accommodate those with communication barriers, language difficulty, distinct religious practices and beliefs, and physical inability to attend court proceedings, in accordance with existing laws and rules.

CANON VI

Competence and Diligence

Core Principle of Canon VI (Competence and Diligence)

Competence and diligence encompass a judge's knowledge, skills, values, and personal qualities necessary to efficiently and effectively perform their noble role of dispensing justice fairly and objectively.

Competence is the ability to perform adjudicative and administrative functions efficiently and effectively.

Diligence is the consistent and earnest effort of a judge to discharge their adjudicative and administrative functions in a manner that prevents delay, oppression, and injustice.

SECTION 1. Requirement of highest professional competence and diligence. — A judge shall be faithful to one's official duties and maintain the highest standard of professional competence and diligence.

SECTION 2. Commitment to judicial duties. — A judge shall devote and pursue their professional activities in a manner that is consistent with the proper discharge of their judicial functions and responsibilities, which include not only the writing of decisions, but also other tasks relevant to the judicial office.

The adjudicative functions of a judge shall take precedence over all other activities.

SECTION 3. Decision-making. — A judge shall personally write all decisions and resolutions based on the facts and laws, rules, and jurisprudence.

SECTION 4. Duty to ensure speedy disposition of cases. — In the discharge of judicial functions, a judge shall adhere to the prescribed periods to act or decide as set forth in the Constitution, the law and rules. A judge shall be responsible for the prompt and efficient disposition of cases.

SECTION 5. Continuing judicial career enhancement. — To maintain and enhance professional competence, a judge shall take reasonable steps to improve one's knowledge, skills, and values necessary for the proper and efficient performance of their duties.

A judge shall keep abreast of the relevant developments in the field of law, including international law and norms. They must be proficient in the use of technological tools that aid in the discharge of their adjudicative and administrative functions.

A judge may utilize artificial intelligence tools only for research of relevant legal authorities, but must always verify the sources before properly citing them in their decisions.

SECTION 6. Ethical use of technology and artificial intelligence. — A judge's use of technological tools and innovations shall be in accord with the fundamental rights of court users and court personnel, as well as ethical and professional standards, as may be promulgated by the Court. A judge shall exercise care and

prudence in the use of technology and artificial intelligence, keeping in mind that these are merely tools to aid them in the exercise of their judicial duties, and must never substitute the judge's own discernment and discretion, especially in the writing of decisions and resolutions.

SECTION 7. Responsible and efficient court management. — A judge, in one's regular or acting capacity, shall be responsible for, and efficient in, the management of their court, its cases, properties and personnel, to ensure transparent, effective, and prompt delivery of court services.

SECTION 8. Duty to ensure prompt, orderly, and efficient court proceedings. — A judge shall ensure the prompt, orderly, and efficient flow of court proceedings, and avoid delay in the disposition of cases.

In all court proceedings, a judge shall maintain order and decorum and shall be patient, dignified, and courteous at all times, using appropriate language, and require similar conduct from court personnel, lawyers and other court users.

SECTION 9. Referral of concerns and recommendations to proper authorities. — A judge shall refer concerns and recommendations relating to court operations only through the proper court authorities.

CANON VII

Accountability

Core Principle of Canon VII (Accountability)

The Code embodies the ethical standards which all judges must observe in their professional and private conduct. In accordance with these standards, judges shall be held accountable for their failure to abide by the duties and obligations imposed on them by their oath and office.

SECTION 1. How instituted. — Disciplinary proceedings under this Canon may be instituted as follows:

(1) Motu proprio against non-Supreme Court members: Proceedings for the discipline of the Presiding Justices and Associate Justices of the Court of Appeals, the Sandiganbayan, the Court of Tax Appeals, the Shari'ah High Court, and Judges of the First and Second Level Courts, including the Shari'ah District and Circuit Courts, may be instituted by the Judicial Integrity Office (JIO) on its own initiative, or upon the directive of the Supreme Court, or by referral from the appropriate offices of the tertiary level courts, or any administrative body (such as CSC, COA, Ombudsman, or DOJ).

(2) By complaint against non-Supreme Court members: Disciplinary proceedings against those mentioned in Section 1(1) may also be filed with the JIO by any interested person via: (a) a verified complaint supported by affidavits and authentic documents, or (b) an anonymous complaint, provided its material averments may be readily verified or substantiated by competent evidence. If filed directly with the Supreme Court or lower courts, it shall be immediately referred to the JIO.

(3) By complaint against members of the Supreme Court: Complaints involving graft and corruption and violations of ethical standards against Members of the Supreme Court shall be filed directly with the Supreme Court and referred to its Committee on Ethics and Ethical Standards for investigation and report to the En Banc. If filed with JIO, it shall be referred to the Supreme Court.

SECTION 2. Effect of death, retirement, and separation from service to the proceedings. — The effect of cessation of service on disciplinary proceedings is governed as follows:

(1) Pre-existing separation: Proceedings may not be instituted against a judge who has already died, retired, resigned or separated from service, EXCEPT that for compelling reasons, proceedings may still be instituted within twelve (12) months from such retirement, resignation, or separation.

(2) Supervening separation: Once proceedings have been instituted, supervening resignation, retirement or separation shall not preclude or affect continuation of proceedings. If a respondent dies during pendency, proceedings are dismissed with prejudice, subject to surviving civil claims against the estate.

(3) Non-affecting circumstances: Complainant desistance, settlement, compromise, restitution, withdrawal, failure to prosecute, death of complainant, or transfer of residence abroad shall NOT terminate the JIO investigation, unless exceptional circumstances exist as determined by the Supreme Court upon JIO recommendation.

SECTION 3. Action initiated by the Supreme Court or the JIO; verified comment. — In proceedings initiated by the JIO, the respondent shall be notified of the relevant acts/omissions and applicable Canons, and served with copies of records. Within ten (10) calendar days from notice (extendable by JIO up to 30 calendar days), respondent shall file a verified comment supported by affidavits and documents.

SECTION 4. Initial action when proceedings initiated by complaint; verified comment. — If commenced by verified or anonymous complaint and JIO finds factual basis to proceed, respondent shall be served copies and required to file a verified comment within ten (10) calendar days (extendable up to 30 calendar days).

SECTION 5. Recommendation for outright dismissal of complaint. — If the JIO finds no factual basis, it shall recommend outright dismissal. If the complaint on its face appears baseless and filed only to harass, embarrass, hinder promotion, or delay retirement benefits, the JIO shall recommend requiring the complainant (and counsel, if any) to show cause why they should not be cited for contempt or Bar disciplinary sanctions. Vexatious complainants shall be presumed to have abused court processes.

SECTION 6. Consequence of failure to comment. — Failure of respondent to file a verified comment shall result in a waiver of participation, and investigation proceeds based on the complaint and record.

SECTION 7. Prohibited motions and pleadings. — The following submissions are prohibited and shall only be noted without action: (a) motion for bill of particulars or clarification; (b) motion to dismiss; (c) motion to quash; (d) memoranda; and (e) supplemental pleadings including rejoinders, unless specifically allowed by the JIO.

SECTION 8. Administrative case considered as disciplinary action as a member of the Bar. — An administrative complaint against a justice or judge shall also be treated as a disciplinary action against that respondent as a member of the Philippine Bar. If found liable, the respondent may be subjected to appropriate disciplinary sanctions under the Code of Professional Responsibility and Accountability (CPRA).

SECTION 9. Preventive suspension of respondent. — The Supreme Court may, *motu proprio* or upon JIO recommendation, order the preventive suspension of the respondent for a period not exceeding ninety (90) calendar days, extendable only for compelling reasons. Preventive suspension enables an unhampered formal investigation.

SECTION 10. Withholding of retirement benefits. — If the respondent is retiring or has retired, the Supreme Court may order the withholding of retirement benefits, in full or part, for a period not exceeding three (3) months from effectivity date of retirement. If proceedings are not terminated within 3 months, benefits shall be released unless otherwise ordered.

SECTION 11. Procedure for formal investigation. — Formal investigation follows three phases: (1) Order of Formal Investigation (assigned to a Judicial Integrity Officer); (2) Hearing (conducted within 30 calendar days using judicial affidavits and cross-examinations); (3) JIO Report (submitted to Supreme Court within 60 calendar days, extendable by 30 days).

SECTION 12. Functions of the JIO during hearings. — The JIO administers oaths, issues subpoenas, receives evidence, resolves objections, and directs the orderly flow of the investigation.

SECTION 13. Referral of fact-finding investigation. — The JIO may refer specific fact-finding inquiries or verifications to other offices or law enforcement agencies when necessary.

SECTION 14. Termination of fact-finding investigation. — If the JIO finds no sufficient basis after fact-finding, it shall submit a report recommending closure or dismissal to the Supreme Court.

SECTION 15. Confidentiality of proceedings and records. — All proceedings, records, and documents before the JIO are confidential until the Supreme Court renders its final decision, unless disclosure is authorized by the Court.

SECTION 16. Action of the Supreme Court. — The Supreme Court shall take action on the JIO Report. Decisions/resolutions are served electronically and by registered mail, attached to respondent's 201 file at OCA, and furnished to the Office of the Bar Confidant.

SECTION 17. Classification of offenses. — Administrative offenses under this Code are classified into: (a) Serious offenses; (b) Less serious offenses; and (c) Light offenses.

SECTION 18. Serious offenses. — Serious offenses include:

- (a) Gross misconduct constituting violations of the Constitution, this Code, or criminal laws;
- (b) Bribery, direct or indirect, and corrupt practices;
- (c) Dishonesty, falsification, and perjury in official documents;
- (d) Grave inefficiency or neglect in the performance of judicial duties;
- (e) Insubordination and defiance of lawful Supreme Court orders;
- (f) Commission of crimes involving moral turpitude;
- (g) Extortion or solicitation of funds, gifts, or favors;
- (h) Borrowing money or property from lawyers or litigants with pending cases before the court;
- (i) Gross immorality;
- (j) Gross ignorance of the law or procedure;
- (k) Grave abuse of authority, or conduct unbecoming of a judge that gravely besmirches the reputation of the service;
- (l) Sexual harassment or any other form of sexual abuse;
- (m) Gross insubordination;
- (n) Use of prohibited drugs or substances (pursuant to SC drug-free policy A.M. No. 23-02-11-SC);
- (o) Illegal possession of firearms, ammunitions, or explosive devices;
- (p) Unlawful discriminatory acts in the performance of judicial functions based on gender, religion, race, age, etc.;
- (q) Habitual alcoholism; and
- (r) Other acts analogous or similar to the foregoing.

SECTION 19. Less serious offenses. — Less serious offenses include:

- (a) Simple misconduct constituting violations of this Code, Code of Conduct for Public Officials, or CPRA;
- (b) Habitual absenteeism or tardiness;
- (c) Unauthorized private practice of law;
- (d) Receiving additional or double compensation, unless authorized by law;
- (e) Partisan political activity;

- (f) Illegal gambling;
- (g) Willful failure to pay just debts and obligations, or taxes due to the government;
- (h) Lending money with exorbitant interest; and
- (i) Other acts analogous or similar to the foregoing.

SECTION 20. Light offenses. — Light offenses include:

- (a) Acts done during office hours other than official functions, including computer/mobile games, excessive recreational social media use, repeated long lunches or coffee breaks;
- (b) Simple neglect of duty; and
- (c) Other acts analogous or similar to the foregoing.

SECTION 21. Preliminary grievance meeting in complaints involving less serious and light offenses. —

In complaints involving less serious and light offenses where complainant and respondent belong to the same office/court station, the JIO conducts a mandatory preliminary grievance meeting (at least 2 meetings within 60 days) to explore resolution before docketing.

SECTION 22. Penalties. — The following penalties shall be imposed upon finding of administrative liability:

- (1) Serious Offenses:** (a) Dismissal from service, forfeiture of benefits (excluding accrued leave credits), and disqualification from public office; (b) Suspension without salary/benefits for 1 year and 1 day up to 3 years; and/or (c) Fine of PHP 101,000.00 to PHP 500,000.00.
- (2) Less Serious Offenses:** (a) Suspension without salary/benefits for 6 months and 1 day up to 1 year; and/or (b) Fine of PHP 51,000.00 to PHP 100,000.00.
- (3) Light Offenses:** (a) Fine of PHP 20,000.00 to PHP 50,000.00; (b) Suspension for 1 month up to 6 months; (c) Censure; or (d) Reprimand.

Note on Warnings: In all instances, money owed shall be ordered returned. Admonition or warning is not considered a penalty under this Code.

SECTION 23. Penalty in lieu of dismissal on account of supervening separation. — If dismissal is warranted but respondent has separated (resigned/retired), the Court may impose forfeiture of benefits (excluding accrued leave credits), perpetual disqualification from public office, and/or fine.

SECTION 24. Modifying circumstances. — In determining penalty, the Court may appreciate mitigating and aggravating circumstances:

- (1) Mitigating Circumstances:** (a) First offense; (b) Length of service of at least 10 years with clean record; (c) Exemplary performance; (d) Humanitarian considerations; (e) Unconditional admission of guilt and remorse; (f) Analogous circumstances.
- (2) Aggravating Circumstances:** (a) Prior administrative liability; (b) Length of service facilitating the offense; (c) Fraudulent concealment; (d) Arrogance, belligerence, or lack of remorse; (e) Analogous circumstances.

SECTION 25. Manner of imposition of penalty. — If aggravating circumstances are present without mitigating, penalties may be increased up to double the maximum. If mitigating are present without aggravating, penalties may be reduced to half the minimum. Offsetting applies when both are present.

SECTION 26. Penalty for multiple offenses. — Separate penalties are imposed for each offense. If aggregate penalties exceed 5 years suspension or PHP 1,000,000.00 in fines, respondent may be meted dismissal from service. If a single act constitutes multiple offenses, penalty for the most serious offense is meted.

SECTION 27. Payment of fines. — Fines and obligations to return money must be paid within three (3) months from receipt of decision. Unpaid fines may be deducted from salaries, benefits, and accrued leave credits.

SECTION 28. Immediately executory nature. — Decisions or resolutions pronouncing administrative liability are immediately executory. In suspensions, respondent manifests start of suspension within 5 calendar days. Automatic resumption of service occurs upon issuance of Certification of Completion.

SECTION 29. Inflation adjustments. — The Supreme Court shall periodically adjust monetary penalties to account for inflation and economic changes.

SECTION 30. Reinstatement as a judge. — A judge who has been dismissed may file a verified petition for judicial clemency after five (5) years from receipt of the dismissal order. However, if dismissal involved corruption or bribery, NO clemency may be applied for.

SECTION 31. Petition for judicial clemency. — A verified petition for judicial clemency must allege: (a) lapse of 5 years; (b) full compliance with prior orders/restitution; (c) recognition of wrongdoing and positive acts of reformation; (d) good-faith reconciliation with offended party or public apology; (e) requisite good moral character and competence; and support showing productive years or legal learning.

SECTION 32. Action on petition for judicial clemency; prima facie merit. — Upon preliminary evaluation, if the petition has prima facie merit, the Court refers it to JIO for investigation and report within 90 calendar days; otherwise, it is denied outright.

SECTION 33. Investigation by JIO on judicial clemency. — The JIO conducts investigation and submits findings to the Court within 90 calendar days from referral.

SECTION 34. Decision on petition for judicial clemency; quantum of evidence. — The Supreme Court decides clemency petitions on the basis of clear and convincing evidence.

GENERAL PROVISIONS

SECTION 1. Transitory clause. — The Code shall be applied to all pending and future cases, except to the extent that, in the opinion of the Supreme Court, its retroactive application would not be feasible or would work injustice, in which case the procedure under which the cases were filed shall govern.

SECTION 2. Repealing clause. — This Code supersedes the 2004 Code of Judicial Conduct and all previous rules of ethical conduct for judges.

SECTION 3. Effectivity. — This Code shall take effect after 15 calendar days after publication in the Official Gazette or two newspapers of general circulation and posting on the Supreme Court website. (Effective: December 21, 2025).

REVISED OATH OF OFFICE (FOR JUDGES)

Official Text of the Revised Judicial Oath of Office

"I accept the honor, privilege and responsibility entrusted to me as a [position]. I shall hold this office for the interest of all our people. I shall always be guided by the principle that public office is a public trust.

I solemnly swear to uphold the Constitution, as well as all laws, rules, and orders from duly constituted authorities. I shall uphold the rule of law in order to build a just and humane society to promote the common good.

I shall embody competence, integrity, probity and independence in the exercise of my judicial functions. I shall always remain independent from any influence or unwarranted or undue pressure. I shall discharge these duties without fear or favor always to ensure equitable access to justice for everyone. In all my actions, I will always endeavor to do justice.

I shall adhere to the highest ethical standards of judicial conduct and comply with my oath as a lawyer. I shall do no falsehood, or impropriety, nor tolerate any unethical behavior of other court officers or staff. In all my dealings, I will conduct myself in a manner compatible with the dignity of my judicial office.

I, [name], impose all these upon myself without mental reservation nor purpose of evasion.

So help me God."

PART IV: SUB-COMMITTEE FOR THE REVIEW OF THE CODE

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CERTIFIED TRUE COPY:
 MARIA CECILIA M. CAPUNPON
 Deputy Clerk of Court and Executive Officer
 OCC-En Banc, Supreme Court